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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN

MINISTRY OF LAW, JUSTICE, HUMAN RIGHTS AND
PARLIAMENTARY AFFAIRS

(Law, Justice and Human Rights Division)

Islamabad, the 1st December, 2005

No. F. 2(1)/2005-Pub.—The following Ordinance promulgated by the President is hereby published for General information.

ORDINANCE NO. XIX OF 2005

AN

ORDINANCE

further to amend the Societies Registration Act, 1860, in its application to the Islamabad Capital Territory

WHEREAS it is expedient further to amend the Societies Registration Act, 1860 (XXI of 1860), in its application to the Islamabad Capital Territory for the purposes hereinafter appearing;

(789)

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, the President is pleased to make and promulgate the following Ordinance:—

1. **Short title and commencement.**—(1) This Ordinance may be called the Societies Registration (Second Amendment) Ordinance, 2005.

(2) It shall come into force at once.

2. **Amendment of section 21, Act XXI of 1860.**—In the Societies Registration Act, 1860 (XXI of 1860), for section 21, the following shall be substituted, namely:—

“21. *Registration of Deeni Madaris.*—(1) All Deeni Madaris by whatsoever name called shall not operate without getting themselves registered as under, namely:—

- (i) The Deeni Madaris existing before the commencement of the Societies Registration (Second Amendment) Ordinance, 2005, if not already registered, shall get themselves registered under this Act upto the 31st December, 2005; and
- (ii) The Deeni Madaris which are established after the commencement of the Societies Registration (Second Amendment) Ordinance, 2005, shall get themselves registered within one year of their establishment.

Explanation.—One Deeni Madrassah having more than one campus shall need only one registration.

- (2) Every Deeni Madrassah shall submit annual report of its educational activities to the Registrar.
- (3) Every Deeni Madrassah shall cause to be carried out audit of its accounts by an Auditor and submit a copy of its audit report to the Registrar.
- (4) No Deeni Madrassah shall teach or publish any literature which promotes militancy or spreads sectarianism or religious hatred:

Provided that nothing contained herein shall bar the comparative study of various religions or schools of thought or the study of any

other subject covered by the Holy Quran, Sunnah or the Islamic jurisprudence.

Explanation.—In this section “Deeni Maddrassah” means a religious institution primarily for religious education and includes Jamia, Dar-ul-uloom, School, College or University, or called by any other name, set up for purposes of primarily imparting religious education and providing boarding and lodging facilities.”

3. **Addition of new section, Act XXI of 1860.**—After section 21 substituted as aforesaid, the following new section shall be added, namely:—

“22. *Repeal.*—The Societies Registration (Amendment) Ordinance, 2005 (XII of 2005) is hereby repealed.”

GENERAL
PERVEZ MUSHARRAF,
President.

JUSTICE (RETD)
MANSOOR AHMED,
Secretary.